

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #4	CCRB Case #: 201502739	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 04/07/2015 8:18 PM	Location of Incident: 111 Avenue and Sutphin Boulevard	Precinct: 113	18 Mo. SOL 10/7/2016	EO SOL 10/7/2016	
Date/Time CV Reported Mon, 04/13/2015 7:51 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 04/13/2015 7:51 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael McCaffrey	10888	954111	PBQ/S
2. POM Richard Ernyey	06720	953841	PBQ/S
3. POM Jason Figari	11521	953859	PBQ/S

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Stephen Uniszkiewicz	23838	954384	PBQ/S

Officer(s)	Allegation	Investigator Recommendation
A.POM Richard Ernyey	Abuse: PO Richard Ernyey stopped the car in which § 87(2)(b) was an occupant.	
B.POM Michael McCaffrey	Abuse: PO Michael McCaffrey stopped the car in which § 87(2)(b) was an occupant.	
C.POM Richard Ernyey	Abuse: PO Richard Ernyey seized § 87(2)(b) s property.	
§ 87(4-b) § 87(2)(g)		

Case Summary

On April 13, 2015, § 87(2)(b) filed this complaint with the CCRB via email, on behalf of herself and her husband, § 87(2)(b).

At approximately 8:18 p.m. on April 7, 2015, the § 87(2)(b) were driving a rental car near the intersection of 111 Avenue and Sutphin Boulevard, in Queens. § 87(2)(b) was driving, while § 87(2)(b) was in the passenger's seat. They were then pulled over by PO Richard Ernyey and PO Michael McCaffrey for allegedly stopping the rental car in the middle of a crosswalk. After the officers approached, § 87(2)(b) provided them with a copy of his license and registration, as well as a copy of the car's rental agreement. The agreement listed § 87(2)(b) as the vehicle's renter. The officers then returned to their vehicle, where PO McCaffrey ran § 87(2)(b)'s license. He discovered that § 87(2)(b)'s license was expired.

While PO McCaffrey and PO Ernyey were at their vehicle, two additional officers, PO Jason Figari and PO Stephen Uniszkiewicz, arrived at the location. PO Uniszkiewicz approached the § 87(2)(b)'s car and asked § 87(2)(b) to exit. Once § 87(2)(b) was outside, he was placed in handcuffs. PO Uniszkiewicz and PO Figari placed § 87(2)(b) in their car. § 87(2)(b) was given the keys to the rental car and told that she could leave. When § 87(2)(b) got into the car and started to drive away, however, PO McCaffrey and PO Ernyey pulled her over again within a block (**Allegations A and B**). PO Ernyey asked § 87(2)(b) to exit the car. PO Ernyey then took the rental car keys from § 87(2)(b)'s hand, entered the rental car, and drove away (**Allegation C**). § 87(2)(b) was also removed from the scene in PO Uniszkiewicz's and PO Figari's vehicle.

§ 87(2)(b) took a taxi to the 113th Precinct stationhouse. Upon arrival, PO Uniszkiewicz released the rental car into her custody. § 87(2)(b) was ultimately charged with § 87(2)(b).

Mediation, Civil and Criminal Histories

This complaint was ineligible for mediation. A notice of claim request was submitted to the Comptroller's office on June 29, 2015, and will be included in the case file upon receipt. ■

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by or involving § 87(2)(b) or § 87(2)(b) (See Board Review: Civilian CCRB Histories).
- PO Ernyey has been a member of the service for two years, and there are no substantiated CCRB allegations against him. PO Ernyey has never been the subject of a property seizure allegation.
- PO McCaffrey has been a member of the service for two years, and there are no substantiated CCRB allegations against him. A prior vehicle stop allegation against him is currently under investigation.
- PO Figari has been a member of the service for two years, and there are no substantiated CCRB allegations against him.

Findings and Recommendations

Explanation of Subject Officer Identification

It is undisputed that PO Ernyey entered the § 87(2)(b) rental car and drove it to the 113th Precinct stationhouse. PO Ernyey stated that he had been specifically instructed to do so by PO Uniszkiewicz. He explained that as PO Uniszkiewicz was § 87(2)(b)'s arresting officer, it was ultimately his decision as to what would be done with the § 87(2)(b) vehicle after the arrest. PO Uniszkiewicz, however, denied instructing PO Ernyey to seize the vehicle, stating that he did not recall any conversation between the officers about what to do with the § 87(2)(b) car after the arrest. Neither PO Figari nor PO McCaffrey recalled PO Ernyey receiving instructions from any other officers, including PO Uniszkiewicz, regarding the § 87(2)(b)'s car. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A: Abuse of Authority – PO Richard Ernyey stopped the car in which § 87(2)(b) was an occupant.

Allegation B: Abuse of Authority – PO Michael McCaffrey stopped the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) and § 87(2)(b) were interviewed at the CCRB on April 22, 2015 (See Board Review: Civilian Statements). Both of them alleged that after § 87(2)(b) was removed from the rental car and moved to PO Uniszkiewicz's and PO Figari's vehicle, § 87(2)(b) got into the rental car and began to drive away. She was pulled over by PO Ernyey and PO McCaffrey within a block of the original incident location.

PO Ernyey and PO McCaffrey were interviewed at the CCRB on May 12, 2015. PO Figari was interviewed on May 29, 2015, while PO Uniszkiewicz was interviewed on June 9, 2015 (See Board Review: MOS Statements). All four officers denied that § 87(2)(b) was pulled over for a second time. None recalled § 87(2)(b) being given permission to return to her vehicle or leave the location at any time.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation B: Abuse of Authority – PO Richard Ernyey seized § 87(2)(b)'s property.

There are several undisputed facts regarding the seizure of the § 87(2)(b). First, § 87(2)(b)'s license was suspended at the time of the vehicle stop. Second, after § 87(2)(b) was removed from the rental car and arrested, PO Ernyey entered the vehicle and drove it to the 113th

Precinct stationhouse, where it was later returned to § 87(2)(b)'s possession. Third, while § 87(2)(b) had been driving the car at the time of the initial stop, § 87(2)(b)'s name was on the rental agreement. As such, § 87(2)(b) was, at the time, considered to be the car's proper owner. Fourth, both PO McCaffrey and PO Ernyey approached the § 87(2)(b) rental car during the initial stop, with PO McCaffrey standing at the driver's seat, and PO Ernyey standing by the front passenger's seat.

§ 87(2)(g)
§ 87(2)(b) PO Ernyey stated that he drove the § 87(2)(b) rental car to the stationhouse on PO Uniszkievicz's instructions. He did not know why PO Uniszkievicz issued these instructions, and did not recall any conversations with PO Uniszkievicz about the car. PO Uniszkievicz denied issuing any such instructions to PO Ernyey, and did not know why PO Ernyey seized the car. Neither PO McCaffrey nor PO Figari recalled PO Uniszkievicz issuing any instructions to PO Ernyey regarding the § 87(2)(b) car. § 87(2)(g)
§ 87(2)(b)

§ 87(2)(b) and § 87(2)(b) both stated that they provided the car's rental agreement to PO McCaffrey during the initial stop. They also stated that § 87(2)(b) attempted to provide her driver's license to PO McCaffrey, but that he did not take or review it. The § 87(2)(b) denied that any of the officers ultimately checked § 87(2)(b)'s license.

PO Ernyey did not recall the § 87(2)(b) rental agreement being produced at any point during the incident. PO McCaffrey, however, confirmed that at some point during the incident, the § 87(2)(b) produced the rental agreement. PO McCaffrey further stated that the agreement identified § 87(2)(b) as the legal renter. Upon reading this, PO McCaffrey asked § 87(2)(b) for license to confirm her identity. After reviewing the license, PO McCaffrey determined that the car had been rented in her name, and that she was a legal driver. While PO McCaffrey did not recall when during the incident this interaction took place, he denied returning to the § 87(2)(b) vehicle after he took § 87(2)(b)'s license to run a DMV check. PO McCaffrey noted during the DMV check that § 87(2)(b)'s license was suspended eleven times, with ten scoffs on three dates.

It is clear that the § 87(2)(b) showed their rental agreement to PO McCaffrey. § 87(2)(g)
§ 87(2)(b) it is undisputed that she, at minimum, offered to show her license to PO McCaffrey. While PO McCaffrey did not recall when this interaction occurred, his own testimony indicated that he only approached the § 87(2)(b) vehicle once at the start of the incident, and did not approach again. § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

New York Vehicle and Traffic Law §511 states that a person is guilty of aggravated unlicensed operation in the second degree when they operate a motor vehicle upon a public highway after receiving at least three previous suspensions on at least three dates. It further states that after making an arrest for this offense, an officer must impound the operator's vehicle unless either the vehicle's registered owner or another properly licensed driver is available to take possession of the vehicle (See Board Review: Legal References).

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted].

§ 87(2)(g), § 87(4-b) [Redacted]
[Redacted]
[Redacted]

[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted].

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date